

Dharmveer Singh v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · Writ-C No. 10523 of 2022 · **Writ disposed without merits; Para 6.8 objection directed with stay of coercive recovery.**

HEADNOTE

A consumer's writ to quash a recovery certificate sent to the Collector was disposed of without examining merits. On the licensee's statement, the High Court granted liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, directed time-bound disposal after hearing, and stayed coercive action for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Dharmveer Singh petitioned the Allahabad High Court to quash a recovery certificate dated 19 January 2021, sent by the Paschimanchal Vidyut Vitran officer (respondent no. 2) to the Collector, Hapur, and to restrain its enforcement. The distribution licensee's counsel stated on instructions that the petitioner could object to the impugned demand, which would then be decided in accordance with law within a time-bound period. The Court acted on that statement without examining the demand on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand and stay of coercive recovery

HOLDING

Without expressing any opinion on merits, the writ was disposed of by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks; directing that if so submitted, the objection be decided in accordance with law within the next four weeks after reasonable opportunity of hearing; and restraining coercive action on the recovery certificate for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Writ against a recovery certificate sent to the Collector was closed by directing a Para 6.8 objection, time-bound reasoned disposal after hearing, and an interim bar on coercive action. ¶ 4-5

alternative-remedy-statutory-appeal-6.8 The Court declined a merits decision on the recovery certificate and relegated the consumer to the Para 6.8 objection before the assessing officer. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE DATED 19.01.2021 AND THE UNDERLYING DEMAND

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4